

26PDUD01446 26PDUD01446

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-01

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Case Number: 26PDUD01446 Hearing Date: July 1, 2026 Dept: E

Case No:

26PDUD01446

Hearing Date: 7/1/2026 – 8:30 a.m.

Trial

Date: UNSET

Case

Name: ALICE RYAN v. SYLVIA

ESTELLE; ANYA ESTELLE

[Tentative Ruling –

Demurrer]

RELIEF REQUESTED

Defendants, Sylvia Estelle and Anya Estelle, demur to Plaintiff's

Complaint on the grounds that it fails to state a cause of action.

PROCEDURAL ANALYSIS

Moving Papers: Demurrer [filed 5/27/2026]; Demurrer

[filed 6/2/2026]

Opposition Papers: No opposition submitted

Reply Papers: No reply submitted

Meet and Confer

“This section does not apply to the following civil actions:(2) A proceeding in forcible entry, forcible detainer, or unlawful detainer.” (CCP, § 430.41(d)(2).)

Since Plaintiff’s action is an unlawful detainer action, it appears that the meet and confer requirement is not necessary for this demurrer hearing.

LEGAL STANDARDS FOR DEMURRERS

Demurrer – Sufficiency

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, *supra*, 147 Cal.App.4th at 747.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) “All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient

particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-157.)

On demurrer, a trial court has an independent duty to “determine whether or not the ... complaint alleges facts sufficient to state a cause of action under any legal theory.” (Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 734.) Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged but “must dispose of an entire cause of action to be sustained.” (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.) “Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Demurrer – Uncertainty

A special demurrer for uncertainty, CCP section 430.10(f), is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

TENTATIVE

RULING DEMURRER

Background

Plaintiff,

Alice Ryan, filed the instant unlawful detainer action on 5/13/2026 against Defendants, Sylvia Estelle and Anya Estelle.

Plaintiff

alleges that pursuant to an oral agreement she allowed Defendants to stay at the subject premises (1840 Fern Lane, Apt. 1, Glendale, CA 91208) as temporary guests, without having to pay rent, and all utilities paid for by Plaintiff.

Plaintiff

alleges that after a violent incident occurred between the Defendants on March 23, 2026, Plaintiff informed Defendants that they were no longer permitted to stay at the subject premises.

Which

Demurrer Is the Court Considering?

Defendants

filed two demurrers that target Plaintiff's Complaint.

The first

demurrer was filed on 5/27/2026, and the second demurrer (Amended Demurrer) was filed on 6/2/2026.

Problematic

with the first demurrer [filed on 5/27/2026, indicating a demurrer hearing date for 6/5/2026] is that it lacks a proof of service for the demurrer.

How would

Plaintiff know about the hearing on the demurrer when Defendants do not provide any proof that the demurrer was served on Plaintiff?

Under CRC, rule

3.1300(c), "Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (CRC, rule 3.1300(c).)

Since the first

demurrer [filed on 5/27/2026] did not contain a proof of service, the Court will not consider the first demurrer.

Instead, the

Court will consider the second demurrer [filed on 6/2/2026; titled "Amended Demurrer to Complaint"] because the second demurrer contains a proof of service.

Notice Page

Possibly Defective

As a

preliminary matter, the Court notes that the Notice of Hearing of Defendants' Amended demurrer does not include a date that the hearing on Defendants' Amended Demurrer is to occur.

Under CRC, rule 3.1110(b), pertaining to the general format for a Notice of motion:

(b) Date of hearing and other information

The first page of each paper must specify immediately below the number of the case:

(1) The date, time, and location, if ascertainable, of any scheduled hearing and the name of the hearing judge, if ascertainable;

(2) The nature or title of any attached document other than an exhibit;

(3) The date of filing of the action; and

(4) The trial date, if set.

(CRC, rule 3.1110(b).)

Here, Defendants' notice page for their Amended Demurrer does not include the date, time, and location of the hearing on Defendants' Amended Demurrer.

Therefore, Defendants' notice page does not appear to comply with CRC, rule 3.1110(b)(1).

Further, under CRC, rule 3.1320(c), pertaining to demurrers:

(c) Notice of hearing

A party filing a demurrer must serve and file therewith a notice of hearing that must specify a hearing date in accordance with the provisions of Code of Civil Procedure section 1005 and, if service is by electronic means, in accordance with the requirements of Code of Civil Procedure section 1010.6(a)(4) and rule 2.251(h)(2).

(CRC, rule 3.1320(c).)

Here, if CRC, rule 3.1320(c) is applicable, then Defendants did not comply with it.

The Court stresses the conditional “if” because the Court is not entirely clear if CRC, rule 3.1320(c) is applicable based on the fact that the notice requirements of a demurrer to an unlawful detainer action appear to be set forth in CCP § 1170(b), and not CCP § 1005.

Under CCP § 1005, demurrers ordinarily require a 16 court day notice period under 1005(b). (See CCP, § 1005(b).)

However, under CCP § 1170, a hearing on demurrer shall not be less than five court days nor more than seven court days after the filing of the notice of motion. (See CCP, § 1170(b)(1).)

Therefore, it is unclear if CRC, rule 3.1320(c) is applicable here and Defendants must “specify a hearing date” in accordance with CCP § 1170, or if 3.1320(c) and its requirement to “specify a hearing date” is only applicable when the demurrer must follow the requirements of 1005.

Service

It appears that Defendants’ Amended Demurrer [filed 6/2/2026] was not properly served.

In relevant part of CCP § 1170(b)(1), “All moving and supporting papers shall accompany the notice of the motion and shall be served in compliance with this section and

Section 1010.6 or 1013.” (CCP, § 1170(b)(1).)

CCP § 1010.6

pertains to electronic service.

CCP § 1013 pertains

to service by mail (1013(a)-(b)), Express Mail (1013(c)-(d)), and facsimile transmission (1013(e)-(f)).

Here, it is

unclear if Defendants served their Amended Demurrer electronically or via U.S. Mail.

Defendants’

Proof of Service was executed via signature by Jeremy Cook, Declarant, on May 28, 2026. The Proof of Service states:

PROOF

OF SERVICE

I am over 18

years of age and not a party to the within action; my business address is 312 W. Fifth St. #512, Los Angeles CA 90013

On May 28, 2026, I served a true copy of:

Amended Demurrer

to: Alice Ryan

1840 Fern Lane

Glendale CA 91208

by:

() ELECTRONICALLY. The document was served electronically under CCP § 1013b. My email addresses are and .

(x) AS FOLLOWS: I am "readily familiar" with the firm's practice of collection and processing correspondence for mailing. Under that practice, it would be deposited within U. S. Postal Service on that same day with postage thereon fully prepaid at Los Angeles, California in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date of postage meter date is more than one day after the date of deposit for mailing in affidavit.

I certify under penalty of perjury, under the laws of the State of California and the United States that the foregoing is true and correct.

Executed on May
28, 2026 at Los Angeles, California.

(Def. Amend.
Dem., Proof of Serv.)

The Court notes that the Proof of Service of the Amended Demurrer was signed by Jeremy Cook, Declarant.

First, the Court notes that it is unclear if this Amended Demurrer was served electronically, or by U.S. Mail, or by both methods, or by neither method.

"All moving and supporting papers shall accompany the notice of the motion and shall be served in compliance with this section and Section 1010.6 or 1013." (CCP, § 1170(b)(1).)

Service – Electronic
– CCP § 1010.6

It is difficult to tell if this Amended Demurrer was served electronically because Jeremy Cook did not place an "X" inside the parentheses next to "ELECTRONICALLY"; however, following the word "ELECTRONCALLY[,]" the proof of service states that "The document was

served electronically under CCP § 1013b.”

Is the Court to assume that Jeremy Cook's statement that he served the Amended Demurrer “electronically” to be true, or is the Court to assume Jeremy Cook did not serve the Amended Demurrer electronically because he did not place an “X” inside the parentheses next to the word “ELECTRONICALLY” to indicate that the Amended Demurrer was served electronically?

If Defendants

served their Amended Demurrer under CCP § 1013b, as their Proof of Service indicates, then Defendants did not comply with 1013b.

As a

preliminary matter, the Court notes that CCP § 1170(b)(1) states that the moving papers shall be served in compliance with Section 1010.6 or 1013. (See, CCP § 1170(b)(1).)

Although CCP §

1170(b)(1) does not explicitly mention that the moving papers must be served in compliance with 1013b, and instead 1170(b)(1) mentions compliance with 1010.6, it appears that it would logically follow, based on the statutory scheme, that the moving papers served must be served in compliance with 1013b if they were served electronically.

CCP § 1010.6

spells out how to effectuate electronic service, not how to prove or show such service has been made. (*Wing Inflatables, Inc. v. Certain Underwriters at Lloyd's* (2025) 112 Cal.App.5th 1108, 1113.)

Rather, the

Legislature enacted a separate statute, section 1013b, titled “Proof of electronic service,” instructing not only parties, but also superior court clerks, how to show proof of electronic service. (*Wing Inflatables, Inc. v. Certain Underwriters at Lloyd's* (2025) 112 Cal.App.5th 1108, 1113 citing CCP § 1013b.)

Under CCP

§1013b(b)

(b) Proof of electronic service

shall include all of the following:

(1) The electronic service address and the residence or business address of the person making the electronic service.

(2) The date of electronic service.

(3) The name and electronic service address of the person served.

(4) A statement that the document was served electronically.

(CCP, § 1013b(b).)

Section 1013b goes hand in glove with section 1010.6. (Wing Inflatables, Inc. v. Certain Underwriters at Lloyd's (2025) 112 Cal.App.5th 1108, 1113.)

If Defendants served this Amended Demurrer electronically, they did not comply with CCP § 1013b(b)(3) because the proof of service does not include the name and electronic service address of the person served.

The proof of service indicates what Jeremy Cook's email addresses are, but the proof of service does not include the name and electronic address of the person served.

Therefore, if Defendants served their Amended Demurrer electronically under 1013b, as their proof of service alleges, they did not comply with 1013b(b)(3). Thus, Defendants' proof of service is incorrect to state it complied with 1013b.

Service –
U.S. Mail - 1013

With respect to serving this Amended Demurrer via U.S. Mail, the Court is also likely to find

that Defendants did not properly serve Plaintiff the Amended Demurrer.

As a

preliminary matter, the Court notes that CCP § 1170(b)(1) states that the moving papers shall be served in compliance with Section 1010.6 or 1013. (See, CCP § 1170(b)(1).)

Although CCP § 1170(b)(1)

does not explicitly mention that the moving papers must be served in compliance with 1013a, and instead 1170(b)(1) mentions 1013, it appears that it would logically follow, based on the statutory scheme, that the moving papers served must be served in compliance with 1013a.

Section 1013,

with respect to service by mail, provides:

(a) In case of service by mail,

the notice or other paper shall be deposited in a post office, mailbox, subpost office, substation, or mail chute, or other like facility regularly maintained by the United States Postal Service, in a sealed envelope, with postage paid, addressed to the person on whom it is to be served, at the office address as last given by that person on any document filed in the cause and served on the party making service by mail; otherwise at that party's place of residence. Service is complete at the time of the deposit, but any period of notice and any right or duty to do any act or make any response within any period or on a date certain after service of the document, which time period or date is prescribed by statute or rule of court, shall be extended five calendar days, upon service by mail, if the place of address and the place of mailing is within the State of California, 10 calendar days if either the place of mailing or the place of address is outside the State of California but within the United States, 12 calendar days if the place of address is the Secretary of State's address confidentiality program (Chapter 3.1 (commencing with Section 6205) of Division 7 of Title 1 of the Government Code), and 20 calendar days if either the place of mailing or the place of address is outside the United States, but the extension shall not apply to extend the time for filing notice of intention to move for new trial, notice of intention to move to vacate judgment pursuant to Section 663a, or notice of appeal. This extension applies in the absence of a specific exception provided for by this section or other statute or rule of court.

(b) The copy of the notice or other paper served by mail pursuant to this chapter shall bear a notation of the date and place of mailing or be accompanied by an unsigned copy of the affidavit or certificate of mailing.

(CCP, §
1013(a)-(b).)

“Service by mail must be made in strict compliance with the mandates of sections 1013 and 1013a.” (Simplon Ballpark, LLC v. Scull (2015) 235 Cal.App.4th 660, 664 citing Lee v. Placer Title Co. (1994) 28 Cal.App.4th 503, 509.)

Under CCP §
1013a:

Proof of service by mail may be made
by one of the following methods:

(1) An affidavit setting forth the exact title of the document served and filed in the cause, showing the name and residence or business address of the person making the service, showing that he or she is a resident of or employed in the county where the mailing occurs, that he or she is over the age of 18 years and not a party to the cause, and showing the date and place of deposit in the mail, the name and address of the person served as shown on the envelope, and also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid.

(2) A certificate setting forth the exact title of the document served and filed in the cause, showing the name and business address of the person making the service, showing that he or she is an active member of the State Bar of California and is not a party to the cause, and showing the date and place of deposit in the mail, the name and address of the person served as shown on the envelope, and also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid.

(3) An affidavit setting forth the exact title of the document served and filed in the cause, showing (A) the

name and residence or business address of the person making the service, (B) that he or she is a resident of, or employed in, the county where the mailing occurs, (C) that he or she is over the age of 18 years and not a party to the cause, (D) that he or she is readily familiar with the business' practice for collection and processing of correspondence for mailing with the United States Postal Service, (E) that the correspondence would be deposited with the United States Postal Service that same day in the ordinary course of business, (F) the name and address of the person served as shown on the envelope, and the date and place of business where the correspondence was placed for deposit in the United States Postal Service, and (G) that the envelope was sealed and placed for collection and mailing on that date following ordinary business practices. Service made pursuant to this paragraph, upon motion of a party served, shall be presumed invalid if the postal cancellation date or postage meter date on the envelope is more than one day after the date of deposit for mailing contained in the affidavit.

(4) In case of service by the clerk of a court of record, a certificate by that clerk setting forth the exact title of the document served and filed in the cause, showing the name of the clerk and the name of the court of which he or she is the clerk, and that he or she is not a party to the cause, and showing the date and place of deposit in the mail, the name and address of the person served as shown on the envelope, and also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid. This form of proof is sufficient for service of process in which the clerk or deputy clerk signing the certificate places the document for collection and mailing on the date shown thereon, so as to cause it to be mailed in an envelope so sealed and so addressed on that date following standard court practices. Service made pursuant to this paragraph, upon motion of a party served and a finding of good cause by the court, shall be deemed to have occurred on the date of postage cancellation or postage meter imprint as shown on the envelope if that date is more than one day after the date of deposit for mailing contained in the certificate.

(CCP, §
1013a(1)-(4).)

The case of *Simplon Ballpark, LLC v. Scull* helps explain the three methods of service by mail under 1013a, when service is not by the clerk of a court of record, as follows:

Section 1013a sets forth three methods for a party to prove service by mail. All three subdivisions require an affidavit or certificate "setting forth the exact title of the document served and filed in the cause" and "showing the name and residence or business address of the person making the service." (§ 1013a, subds. (1), (2) & (3).) Subdivisions (1) and (2) set forth the method for service where the declarant actually puts the correspondence in a mailbox or takes it to the post office. Under subdivision (1), the declarant must state "he or she is a resident of or employed in the county where the mailing occurs" and "that he or she is over the age of 18 years and not a party to the cause." Under subdivision (2), the declarant must state "he or she is an active member of the State Bar of California and is not a party to the cause." Subdivisions (1) and (2) also require the declarant "show[] the date and place of deposit in the mail, the name and address of the person served as shown on the envelope" and "that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid."

Subdivision (3) applies where the correspondence is placed in an outgoing mail bin from which it is picked up and combined with other correspondence for mailing that day. Under subdivision (3), the declarant must state that he or she is over the age of 18 years and not a party to the cause; he or she is readily familiar with the business' practice for collection and processing of correspondence for mailing with the USPS; that the correspondence would be deposited with the USPS that same day in the ordinary course of business; the name and address of the person served as shown on the envelope; the date and place of business where the correspondence was placed for deposit in the USPS; and that the envelope was sealed and placed for collection and mailing on that date following ordinary business practices. Critically, service under *665 subdivision (3) "upon motion of a party served, shall be presumed invalid if the postal cancellation date or postage meter date on the envelope is more than one day after the date of deposit for mailing contained in the affidavit."

(Simplon
Ballpark, LLC v. Scull (2015) 235 Cal.App.4th 660, 664-665.)

Here, if Defendants served the Amended Demurrer via U.S. mail, they did not comply with CCP § 1013a(1) because the affidavit did not show that Jeremy Cook "is a

resident of or employed in the county where the mailing occurs,” Jeremy Cook did not show the “place of deposit in the mail,” and Jeremy Cook did not show that “envelope was sealed and deposited in the mail with the postage thereon fully prepaid.” (Compare Defendants’ Proof of Service to the requirements of CCP § 1013a(1).)

Here, if

Defendants served the Amended Demurrer via U.S. mail, they did not comply with CCP § 1013a(2) because Jeremy Cook does not show that he is an active member of the State Bar of California, nor did he show the place of deposit in the mail. (Compare Defendants’ Proof of Service to the requirements of CCP § 1013a(2).)

Here, if

Defendants served the Amended Demurrer via U.S. mail, they did not comply with CCP § 1013a(3) because the affidavit did not show that Jeremy Cook is a resident of, or employed in, the county where the mailing occurs, and Jeremy Cook did not show the date and place of business where the correspondence was placed for deposit in the United States Postal Service.

Particularly,

the Court notes that the proof of service indicates Jeremy Cook’s business address, but Jeremy never once states where he is a resident of, nor does he state he is employed in the county where the mailing occurs. Further, he never states the place of deposit of the Amended Demurrer.

“All moving and

supporting papers shall accompany the notice of the motion and shall be served in compliance with this section and Section 1010.6 or 1013.” (CCP, § 1170(b)(1).)

For the reasons

explained above, it does not appear as if Defendants properly served their Amended Demurrer, and the Court notes that Plaintiff did not submit an opposition.

Substantive

Defendants’

Amended Demurrer is largely incomprehensible, and Defendants appear to cite

inapposite legal authority on many occasions.

Unfortunately,
it is difficult to determine whether Defendants' arguments are meritorious
because Plaintiff did not submit an opposition.

It is possible
that Plaintiff did not submit an opposition because, as previously explained,
it is possible that Defendants did not serve this Amended Demurrer to
Plaintiff.

Moving
Argument 1

Defendants argue
that Plaintiff's Complaint for unlawful detainer fails to state facts
sufficient to constitute a cause of action because the 3-day notice, attached
as Exhibit 2 to Plaintiff's Complaint, did not state when the 3-day notice
period started or ended, as required by *Eshagian v. Cepeda* (2025) 112
Cal.App.4th 433, 459 (*Eshagian*).

Here, the Court
will hear argument.

In *Eshagian*,
the Court of Appeal held that because the three-day notice failed to strictly
comply with section 1161(2), *Eshagian* failed to state a cause of action for
unlawful detainer, and the possession-only judgment must be reversed. (*Eshagian*
v. Cepeda (2025) 112 Cal.App.4th 433, 459.)

Eshagian explained
the three-day notice requirement under CCP § 1161(2) as follows:

"The Unlawful Detainer Act [(§§
1159-1179a)] governs the procedure for landlords and tenants to resolve
disputes about who has the right to possess real property. [Citations.] Given
the need for quick, peaceful resolutions of unlawful detainer actions, the
statutory procedures must be strictly adhered to, including the stringent
requirements for service, notice, and filing deadlines." (*Stancil v.*
Superior Court (2021) 11 Cal.5th 381, 394-395, 278 Cal.Rptr.3d 27, 485

P.3d 446; accord, *Dr. Leevil, LLC v. Westlake Health Care Center* (2018) 6 Cal.5th 474, 480, 241 Cal.Rptr.3d 12, 431 P.3d 151 [“ ‘The statutory requirements in [unlawful detainer proceedings “ ‘must be followed strictly.’ ” ’ ”]; *Sheehan, supra*, 105 Cal.App.5th at p. 75, 325 Cal.Rptr.3d 438.)

“Section 1161(2) provides that a tenant is guilty of unlawful detainer when the tenant continues in possession of a rental property without the permission of the landlord after default in the payment of rent.” (*Sheehan, supra*, 105 Cal.App.5th at p. 75, 325 Cal.Rptr.3d 438.) When the tenant continues in possession, “service of a ‘valid three-day notice to pay rent or quit is a prerequisite to an unlawful detainer action.’ ” (*Ibid.*; accord, *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, 697, 32 Cal.Rptr.2d 635.) “The notice’s purpose is to inform the tenant of the breach so the tenant can rationally choose whether to cure the breach and retain possession, quit the property, or contest the allegations.” **243 (*Lee v. Kotyluk* (2021) 59 Cal.App.5th 719, 731, 274 Cal.Rptr.3d 29.)

Section 1161(2) requires that the three-day-notice be in writing, state the amount of rent due, and include specified information regarding how the rent may be paid.¹⁰ “ ‘[B]ecause of the summary nature of an unlawful detainer action, a notice is valid only if the lessor strictly complies with the statutorily mandated notice requirements.’ ” (*Sheehan, supra*, 105 Cal.App.5th at pp. 81-82, 325 Cal.Rptr.3d 438 [three-day-notice was defective because it “[did] not provide the correct spelling or complete name of the corporation to whom rent should be paid”]; *458 accord, *Bevill v. Zoura, supra*, 27 Cal.App.4th at p. 697, 32 Cal.Rptr.2d 635 [three-day-notice was defective because it stated amount of rent in excess of what was due].) “The Legislature added these informational requirements to avoid confusion and ‘protect both landlords and tenants alike, by setting forth clear rules for payment to whom and where.’ (Assem. Com. on Housing and Community Development, Analysis of Sen. Bill No. 985 (2001-2002 Reg. Sess.) as amended July 9, 2001, p. 7.)” (*Sheehan, supra*, at p. 75, 325 Cal.Rptr.3d 438; accord, *Foster v. Williams* (2014) 229 Cal.App.4th Supp. 9, 16, 177 Cal.Rptr.3d 371.)

(*Eshagian v. Cepeda* (2025) 112 Cal.App.4th 433, 457-458; Fn. 10 stating the language of

CCP § 1161(2).)

Under CCP §
1161(2):

A tenant of real property, for a term less than life, or the executor or administrator of the tenant's estate heretofore qualified and now acting or hereafter to be qualified and act, is guilty of unlawful detainer:

2. When the tenant continues in possession, in person or by subtenant, without the permission of the landlord, or the successor in estate of the landlord, if applicable, after default in the payment of rent, pursuant to the lease or agreement under which the property is held, and three days' notice, excluding Saturdays and Sundays and other judicial holidays, in writing, requiring its payment, stating the amount that is due, the name, telephone number, and address of the person to whom the rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available to receive the payment (provided that, if the address does not allow for personal delivery, then it shall be conclusively presumed that upon the mailing of any rent or notice to the owner by the tenant to the name and address provided, the notice or rent is deemed received by the owner on the date posted, if the tenant can show proof of mailing to the name and address provided by the owner), or the number of an account in a financial institution into which the rental payment may be made, and the name and street address of the institution (provided that the institution is located within five miles of the rental property), or if an electronic funds transfer procedure has been previously established, that payment may be made pursuant to that procedure, or possession of the property, shall have been served upon the tenant and if there is a subtenant in actual occupation of the premises, also upon the subtenant.

The notice may be served at any time within one year after the rent becomes due. In all cases of tenancy upon agricultural lands, if the tenant has held over and retained possession for more than 60 days after the expiration of the term without any demand of possession or notice to quit by the landlord or the successor in estate of the landlord, if applicable, the tenant shall be deemed to be holding by permission of the landlord or successor in estate of the landlord, if applicable, and shall be entitled to hold under the terms of the lease for another full year,

and shall not be guilty of an unlawful detainer during that year, and the holding over for that period shall be taken and construed as a consent on the part of a tenant to hold for another year.

(CCP, §
1161(2).)

There are
several problems with Defendants' arguments.

First, Defendants
argue that the 3-day notice is improper because it does not state when the 3-day notice period started or ended under Eshagian.

Problematic
with Defendants' argument about Eshagian is that it does not appear that the instant unlawful detainer action was brought pursuant to CCP § 1161(2).

Eshagian discusses
the 3-day notice requirement under CCP § 1161(2), pertaining to unlawful detainer when the tenant continues in possession without permission after default in the payment of rent.

Here, Plaintiff
does not allege that Defendants defaulted in rent.

Plaintiff
alleges that the instant tenancy is a "Tenancy at will/Guests" and that Plaintiff allowed the Defendants to stay as guests, pursuant to an oral agreement, wherein Plaintiff allowed them to stay as guests without rent. (See Compl., p. 2.)

Plaintiff does
not allege that she is entitled to possession based on Defendants' failure to pay rent.

Plaintiff
alleges that she revoked permission of the non-paying, guest Defendants because Defendants engaged in conduct constituting nuisance and a substantial threat to the health and safety of other occupants at the property because Defendants got

into a violent altercation wherein the Glendale Police Department responded and detained/arrested Defendant, Anya Estelle on the scene, and Defendant, Sylvia Estelle, required transport to an emergency room for wound treatment. (See Compl., p. 6.)

Page 2,
paragraph 8 of the Complaint alleges that the tenancy was terminated for at-fault just cause pursuant to Civil Code, § 1946.2(b)(1). (See Compl., p. 2, ¶ 8.)

Further, page 6
of the Complaint indicates that on May 9, 2026, "Plaintiff served a 3-day Notice to Quit based on the Defendant's creation of an incurable nuisance, illegal conduct, and extreme safety threat on the property pursuant to CCP – 1161(4)." (See Compl., p. 6.)

Therefore, the
Court is not entirely convinced on Defendants' position with respect to Eshagian because that case pertains to failing to comply with the 3-day notice requirement under CCP § 1161(2), and this action does not appear to be based on a 3-day notice under CCP § 1161(2).

Further, even
if Eshagian's 3-day notice requirement under 1161(2) applied in the instant case, there are two differences here.

The first is
the difference in the facts surrounding the 3-day notice in Eshagian and the surrounding facts with the 3-day notice here.

As explained in
Eshagian:

[T]he notice did not state when the
notice period commenced or ended, nor did it inform Cepeda that the three-day period excluded weekends and judicial holidays. The notice appears to have provided the date it was signed by Eshagian but not when the notice was served, which commenced the three-day period. We observe, for example, that the notice is dated December 19, 2022, but the complaint alleged the notice was served "[o]n or about December 20, 2022." Absent this

information, an ordinary tenant would not have reasonably understood the deadline by which the tenant needed to pay the rent due to avoid forfeiture of the premises.

(Eshagian v. Cepeda (2025) 112 Cal.App.4th 433, 459.)

Here,

Plaintiff's 3-day notice to quit, attached as Exhibit 2 to the Complaint does not explicitly state when the notice period commenced or ended; however, the notice is dated and signed on May 9, 2026, the notice indicates that if you fail to vacate in 3 days, legal proceedings (unlawful detainer) will be initiated against you, and the proof of service to the 3-day notice indicates that the 3 Day Notice to Quit was served on May 9, 2026.

Unlike in Eshagian, the proof of service for the 3-day notice to quit indicates that it was served on May 9, 2026, and the Complaint also alleges that the notice was served on May 9, 2026.

Further, while Eshagian noted that the three-day period did not inform Cepeda that the three-day period excluded weekends and judicial holidays, here CCP § 1161(4) does not include the same language of 1161(2) pertaining to excluding Saturdays and Sundays and other judicial holidays.

Under CCP § 1161(4):

4. Any tenant, subtenant, or executor or administrator of that person's estate heretofore qualified and now acting, or hereafter to be qualified and act, assigning or subletting or committing waste upon the demised premises, contrary to the conditions or covenants of the lease, or maintaining, committing, or permitting the maintenance or commission of a nuisance upon the demised premises or using the premises for an unlawful purpose, thereby terminates the lease, and the landlord, or the landlord's successor in estate, shall upon service of three days' notice to quit upon the person or persons in possession, be entitled to restitution of possession of the demised premises under this chapter. For purposes of this subdivision, a person who commits or maintains a public

nuisance as described in Section 3482.8 of the Civil Code, or who commits an offense described in subdivision (c) of Section 3485 of the Civil Code, or subdivision (c) of Section 3486 of the Civil Code, or uses the premises to further the purpose of that offense shall be deemed to have committed a nuisance upon the premises.

(CCP, §
1161(4).)

The Court to
hear argument because Defendants' argument about Plaintiff not successfully alleging sufficient facts relies on Eshagian, and Eshagian pertained to failing to comply with the 3-day notice requirement under CCP § 1161(2), and this action does not appear to be brought pursuant to CCP § 1161(2).

Moving
Argument 2

Defendants
point to ¶ 7 of the Complaint which alleges that the subject tenancy is subject to the Tenant Protection Act of 2019.

Defendants also
point to ¶ 8 of the Complaint which alleges that the tenancy was terminated for at-fault just cause under Civil Code § 1946.2(b)(1).

Defendants
argue that even if the Court assumes the truth of the allegations about Defendants creating an incurable nuisance, these allegations are not sufficient for a nuisance for just-cause eviction under Civil Code § 1946.2(b)(1)(C) and CCP § 1161(4).

Defendants
argue that nuisance is defined by Civil Code § 3479 as anything injurious to health or an obstruction to the free use of property that interferes with the comfortable enjoyment of the property. Defendants argue that the police being called on one occasion does not constitute a nuisance under this statute.

Here, the Court
to hear argument.

At-fault, just

cause, which means any of the following: Maintaining, committing, or permitting the maintenance or commission of a nuisance as described in paragraph (4) of Section 1161 of the Code of Civil Procedure. (Civ. Code § 1946.2(b)(1)(C).)

For purposes of

this subdivision, a person who commits or maintains a public nuisance as described in Section 3482.8 of the Civil Code, or who commits an offense described in subdivision (c) of Section 3485 of the Civil Code, or subdivision (c) of Section 3486 of the Civil Code, or uses the premises to further the purpose of that offense shall be deemed to have committed a nuisance upon the premises. (CCP, § 1161(4).)

Defendants

argue that Civil Code § 3479 defines nuisance as anything injurious to health or an obstruction to the free use of property that interferes with the comfortable enjoyment of the property.

Defendants

argue that one incident of the police being called is not nuisance.

Here, the Court

will hear argument because it does not follow Defendants' arguments.

The Court is

unclear why Defendants cite to Civil Code § 3479 when CCP § 1161(4) appears to define nuisance without Civ. Code § 3479.

In any event, based

on the Court's reading of CCP § 1161(4), the Court fails to see how Plaintiff alleged a nuisance under CCP § 1161(4).

That being

said, Defendants do not make it clear by any means as to what the pleading standard is for the instant action. The Court to hear argument.

Lack of

Opposition and Lack of Reply

The Court notes
that no opposition or reply was submitted.

“An opposition
and reply to an opposition may be made orally at the time of the hearing. If a
party seeks to have a written opposition considered in advance of the hearing,
the written opposition shall be filed and served on or before the court day
before the hearing. Service shall be by personal delivery, electronic service,
fax transmission, express mail, or other means consistent with Sections 1010,
1010.6, 1011, 1012, and 1013, and reasonably calculated to ensure delivery to
the other party or parties no later than the close of business on the court day
before the hearing. The court, in its discretion, may consider written
opposition filed later.” (CCP, § 1170(c).)